

Draft Document Request Checklist

Venezuela — Political Persecution Claim

Prepared: May 21, 2026 | Attorney Review Draft

ATTORNEY REVIEW DRAFT. Do not send to client without attorney approval. This checklist was generated from intake notes and has not been reviewed by an attorney.

1. Identity Documents

#	Document	Notes
1.1	Venezuelan passport	All pages including data page; note if expired
1.2	Venezuelan national ID (cedula de identidad)	Front and back
1.3	Client birth certificate	Official copy; certified translation required
1.4	Son's birth certificate	Confirm full name and DOB; needed for derivative or independent claim
1.5	Son's passport or ID (if any)	Include even if expired
1.6	Any other government-issued ID	Driver's license, voter card, etc.

2. Immigration History Documents

#	Document	Notes
2.1	Notice to Appear (NTA) — full copy	PRIORITY. Needed immediately to confirm court, case number, charges, hearing date
2.2	I-94 arrival/departure record	Check CBP online portal if paper copy unavailable
2.3	Immigration court correspondence	Hearing notices, court orders, judge assignments
2.4	Prior USCIS notices or receipt notices	Confirm no prior filings exist
2.5	Border/CBP processing paperwork	Any forms issued at time of entry
2.6	Credible fear interview notice or result (if applicable)	Confirm whether one was conducted

3. Humanitarian / Asylum Evidence

#	Document	Priority	Notes
3.1	WhatsApp threat screenshots	HIGH	Collect with timestamps and sender info; export as PDF or image with metadata
3.2	Photos from anti-government demonstrations	HIGH	Include any with date/location stamps

#	Document	Priority	Notes
3.3	Evidence of political activity or affiliation	HIGH	Group membership, social media, event invitations, flyers, communications
3.4	Evidence identifying threatening actors	HIGH	Connecting armed men/threateners to named political group or local officials
3.5	Police report or incident report	Medium	May be unavailable or unsafe to request — attorney to advise
3.6	Witness statements	Medium	Anyone who witnessed the workplace incident or threats; coworkers are a likely source
3.7	Medical records	Medium	Only if physical harm occurred; confirm with client
3.8	Psychological evaluation	Medium	Distress noted at intake; may support credibility and one-year bar exception
3.9	Country conditions evidence (attorney-sourced)	Medium	State Dept. Country Report on Venezuela; UNHCR guidance; NGO reports on paramilitary groups
3.10	News/media coverage of demonstrations	Low	Coverage of events client participated in; can be sourced by attorney or paralegal
3.11	Social media evidence of threats or targeting	Medium	Public posts threatening client or documenting the political group's activities

4. Family & Relationship Documents

#	Document	Notes
4.1	Son's birth certificate (listing client as parent)	Establishes relationship for derivative or independent claim
4.2	Son's school enrollment records (U.S. or Venezuela)	Supports presence and relationship
4.3	Any custody or parental rights documentation	Only if relevant — confirm with client
4.4	Relative's letter/affidavit confirming U.S. residence	Florida relatives confirming client's housing arrangement

5. Timeline Clarification Requests

The following gaps must be resolved before filing strategy or deadlines can be assessed:

- **Exact U.S. entry date — month and day in 2023; required to calculate one-year filing bar**
- **Entry method — port of entry (with inspection) or between ports; affects procedural posture**
- Exact date of first threat — needed to establish timeline relative to political activity
- Date of workplace incident — specific date when armed men appeared at client's workplace
- Dates of demonstration participation — approximate dates acceptable; needed to anchor political nexus claim
- Date of departure from Venezuela — needed to complete the flight and persecution timeline
- Any prior U.S. presence — confirm no prior entries, filings, or removal history

6. Additional Corroborating Evidence

Not currently in hand but would materially strengthen the matter:

- Expert declaration on Venezuela country conditions — establishes danger to political activists and links paramilitary groups to government; strongly recommended
- Affidavit from a witness in Venezuela — someone who can attest to the threats, the political group's conduct, or the danger the client faced
- Social media account printouts — if client posted about political activity, corroborates political opinion; also captures any public threats
- Evidence identifying the political group — news articles or NGO/human rights reports naming the group that threatened her
- Affidavit from Florida relatives — confirming client's presence, demeanor, and any knowledge of the Venezuela situation
- Documentation of informal employment — may be needed for other applications or status assessments

7. Internal Attorney Notes

Weakest evidence area: Corroborating documentation of the threats and government nexus. WhatsApp screenshots and demonstration photos are a start, but there is no police report, medical record, or formal documentation tying the threatening actors to the Venezuelan government or ruling party. This is the area most likely to draw an adverse credibility finding.

Biggest credibility concern: Inconsistent timeline recall documented at intake. Likely trauma-related, but must be addressed directly — ideally with a psychological evaluation that speaks to the impact of trauma on memory. Declaration drafting will require careful, iterative work.

Missing corroboration: The connection between the threatening actors and 'local officials' is asserted but unsupported. This nexus is legally foundational. Without it, the claim may read as gang or criminal targeting rather than persecution on account of political opinion.

Urgent evidence needs — prioritize in this order:

- **Full NTA — needed now to confirm hearing date and procedural posture**
- **Exact U.S. entry date — needed to resolve one-year bar question**
- **WhatsApp screenshots — client says they exist; collect before they are lost or deleted**
- Psychological evaluation referral — distress documented at intake; initiate promptly

Staff should not communicate any legal strategy or filing timeline to the client until attorney has reviewed.

8. Client Communication Draft

DRAFT ONLY. Attorney review and approval required before sending to client.

Dear [Client Name],

Thank you for meeting with us. To help us move forward with your case, we need to gather some important documents. Please read this list carefully and bring or send us as many of these items as you can.

Documents we need from you:

- Your Venezuelan passport and national ID card (front and back)
- Your birth certificate and your son's birth certificate
- The Notice to Appear (NTA) or any court papers you received — this is very important and needed right away
- Any screenshots of threats you received on WhatsApp or other apps
- Any photos from the demonstrations you participated in
- Any other documents you received from immigration officials when you entered the United States

Why these documents matter:

These records help us understand your situation and build the strongest possible case for your protection. Some documents — especially the court papers — are urgent and needed immediately.

If you cannot get a document:

Please let us know right away. There are sometimes other ways to support your case even without every document. Do not try to obtain documents in a way that puts you or your family at risk.

Translation:

Documents in Spanish do not need to be translated by you — we will handle that. Please provide originals or clear photos or scans of originals.

How to submit:

You may bring documents to our office, send photos by [secure method], or drop them off at [address]. If you are unsure how to send something, please call us at [phone number].

If you have any questions, please contact [staff name] at [contact information].

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